

IN THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

Present:
Justice Yahya Afridi, CJ
Justice Salahuddin Panhwar

Criminal Petition No.150-K/2024

(On appeal against the order dated 03.10.2024 passed by the High Court of Sindh, Karachi in Criminal Bail application No. 1592 of 2024)

The State/ANF		 Petitioner(s)
	<u>Versus</u>	
Gul Nawab		..Respondent(s)
For the Petitioner(s):	Mr. Habib Ahmed, ASC (Via Video Link Karachi)	
For the State:	Mr. Salahuddin Gandapur, ASC (Via Video Link Karachi)	
Assistance:	Muhammad Subhan Malik (Judicial Law Clerk)	
Date of Hearing:	02.10.2025	

ORDER

Salahuddin Panhwar, J.- The Petitioner, Anti-Narcotics Force, seeks leave of this Court under Article 185(3) of the Constitution of the Islamic Republic of Pakistan, 1973 against the order dated 03.10.2024 passed by the High Court of Sindh, Karachi in Criminal Bail Application No.1592 of 2024 whereby the Respondent, an accused in FIR No.51 of 2023 dated 09.11.2023 registered under s. 9(i)3(c) of the Control of Narcotic Substances Act, 1997 (as amended on 06.09.2022) at Police Station ANF, Clifton, Karachi, was admitted to post-arrest bail.

2. According to the FIR, on 09.11.2023 at about 4:30 p.m., near Sports Complex, Ali Block, Bahria Town, Karachi, the Respondent was apprehended by a police party headed by SI Asad Ali of PS ANF, Clifton, allegedly found in possession of 3.6 kilograms of charas, and booked accordingly.

3. We have heard learned counsel for the parties and perused the record. Whilst we do not find the impugned order to be so perverse or illegal as to irresistibly warrant interference in the exercise of our discretionary jurisdiction at this stage, we are unable to endorse the approach adopted by the High Court in paragraph 5 of the impugned order, which reads as under:

“Per enactment of the CNS Act, 1997, as amended on 06.09.2022, the Legislature itself provided punishment as “may extend to 14 years and not less than 9 years”. It is settled principle of law that when statute provides two punishments, the lesser one should be considered particularly at bail stage. In instant case, the law provides two punishments and other one is 9 years which did not exceed the limits of prohibitory clause of section 497 (i) Cr.P.C. In such like cases, bail becomes right while refusal will be an exception.”

4. The legal question is narrow. When a statute prescribes a range of punishment, a mandatory minimum and a higher maximum (9 years to 14 years in this case), does the “lesser” end of the range alone determine whether the offence falls outside the prohibitory clause of s. 497(1), Cr.P.C., or is it the maximum punishment prescribed by law that controls the threshold inquiry under s. 497(1), Cr.P.C.?

5. Section 9(i)(3)(c) of the CNS Act, as amended on 06.09.2022, prescribes punishment “not less than nine years and may extend to fourteen years.” The text does not provide two distinct or alternative punishments. It fixes a floor of nine years and a ceiling of fourteen years. For the limited purpose of determining whether the prohibitory clause of s. 497(1) is attracted, the consistent approach of this Court is that the maximum punishment prescribed by the statute is decisive. Recently, in **Jabran and another v. The State through Director General FIA and others (2025 SCMR 1099)**, this Court reaffirmed that, at the bail stage, it is the maximum period of sentence prescribed for the offence that determines the application of the prohibitory clause. This aligns with the earlier current of authority. See **Muhammad Haroon v. The State (2004 SCMR 89)** (bail granted where, even if all offences were proved, the maxima under ss. 337-A(i) and 337-A(ii), P.P.C., did not carry the case into the prohibitory clause), **Jamal-ud-Din v. The State (2012 SCMR 573)**, **Socha Gul v. The State (2015 SCMR 1077)**, **Anti-Narcotics Force through its Regional Director/Force Commander, ANF Rawalpindi v. Qasim Ali (2019 SCMR 1928)**, **Hazrat Amin v. The State (2020 SCMR 418)**, and **Gul Rehman v. The State (PLD 2021 SC 795)**. See also **Ghulam Murtaza v. The State (PLD 2009 Lahore 362)**, and **Majid Ali v. The State (2022 PCr.LJ 981)**. In simple words, where the statutory maximum sentence reaches death, life imprisonment, or ten years

or more, s. 497(1)'s prohibitory clause is engaged. Where it does not, the case lies outside the clause and bail is the rule, refusal the exception.

6. Section 9(i)(3)(c) permits sentence up to fourteen years, the offence squarely falls within the prohibitory clause of s. 497(1), Cr.P.C. The nine-year minimum sentence is not an “alternative lesser sentence” that can be used to place offence outside the prohibitory clause. It is only the non-derogable minimum, below which the sentencing court cannot. To treat the minimum as a separate, determinative “lesser” punishment would misconstrue the statutory scheme and blunt the legislative choice to put certain offences, including serious narcotics offences, within the prohibitory fold.

7. This reading does not convert the prohibitory clause into a talisman that forecloses bail in every such case. Even where the clause applies, bail may still be granted on the well-recognised exceptional grounds, for example where the case calls for further inquiry under s. 497(2), Cr.P.C., where there is demonstrable mala fides or false implication, or where the evidence suffers from glaring infirmities or statutory violations, including in narcotics cases breaks in the chain of custody or safe-custody requirements. See **Socha Gul, (2015 SCMR 1077)**, **Hazrat Amin (2020 SCMR 418)**, **Gul Rehman (PLD 2021 SC 795)**, and **ANF v. Qasim Ali (2019 SCMR 1928)**.

8. The High Court relied on **Jamal-ud-Din (2012 SCMR 573)** and **Khuda Bux v. The State (2010 SCMR 1160)** to hold that the “lesser punishment” should be considered at the bail stage. Those pronouncements, properly understood, do not alter the threshold test for the prohibitory clause inquiry. In **Jamal-ud-Din** the Court observed that the likely sentence on the facts may inform the discretionary assessment at bail. In **Khuda Bux** it was noted that the question of imposition of maximum sentence is to be determined during the trial. Read contextually, these remarks guide the exercise of discretion, particularly where the case lies outside the prohibitory clause or where s. 497(2) is engaged, and caution against speculating the worst-case sentence on the facts. They cannot be deployed to rewrite the statutory touchstone for whether the prohibitory clause applies in the first place. On that question, the governing rule, now explicitly restated in *Jabran Case* (ibid) is that the statutory maximum controls.

9. Accordingly, we hold that the High Court erred in treating the nine-year minimum under s. 9(c) as a discrete “lesser punishment” for purposes of s. 497(1), Cr.P.C., and in concluding that the offence, therefore, fell outside the prohibitory clause. That said, interference with an order granting bail is itself hedged with restraint. The Respondent has been on bail pursuant to the impugned order, the State has not shown any misuse of the concession, and the impugned order, though legally imprecise in its reasoning on the prohibitory clause, does not otherwise disclose perversity on the record that would compel us to recall the concession at this stage. See, inter alia, ***Gul Rehman (PLD 2021 SC 795)***. We therefore decline to cancel the bail, but substitute the reasons.

10. For the foregoing reasons, the petition is disposed of in the following terms. **(i)** The impugned order is maintained only to the extent of the ultimate relief of bail to the Respondent. **(ii)** The reasoning that the offence under s. 9(c) falls outside the prohibitory clause because of the nine-year minimum is set aside and replaced with the clarification that, for the purpose of s. 497(1), the maximum punishment prescribed by law is to be considered, as explained above and in ***Jabran Case (2025 SCMR 1099)***, ***Muhammad Haroon Case(2004 SCMR 89)***, ***Jamal-ud-Din Case (2012 SCMR 573)***, ***Socha Gul Case(2015 SCMR 1077)***, ***ANF v. Qasim Ali Case (2019 SCMR 1928)***, ***Hazrat Amin Case (2020 SCMR 418)***, and ***Gul Rehman Case(PLD 2021 SC 795)***. **(iii)** The trial Court shall proceed expeditiously and decide the case on its own merits, uninfluenced by any tentative observations herein. The concession of bail shall remain subject to the Respondent’s continued good conduct, and any misuse shall entail appropriate recourse in accordance with law.

Chief Justice

Judge